

# ATTORNEY-GENERAL FOR INDIA

ARTICLE 76 -> ADVICE -> AUDIENCE -> PARLIAMENT -> LIMITS -> REFORM

One constitutional office; broad access; bounded authority; professional independence under executive confidence.

## 1 IDENTITY AND INSTITUTIONAL FIREWALL

AGI - Article 76 - Union constitutional adviser/advocate

Advocate-General - Article 165 - State constitutional adviser/advocate

SG/ASGs - executive/rule-governed Union law officers

Law Minister - political executive and Cabinet responsibility

CJI/courts - adjudication; private advocate - client representation

Answer line: constitutional government counsel, not judge, minister or prosecutor-general

SOURCE

## 2 ARTICLE 76: FOUR-CLAUSE CONSTITUTIONAL SPINE

76(1) President appoints + Supreme-Court-Judge qualification

76(2) advice on referred legal matters | 76(2) assigned legal duties + functions conferred by Constitution/law

76(3) right of audience in all Indian courts while performing duties

76(4) presidential pleasure | 76(4) remuneration determined by President

CLAUSE MAP

## 3 QUALIFICATION: ARTICLE 124(3), NOT JUDICIAL TENURE

Citizen + five years as Judge of one or more High Courts

Citizen + ten years as advocate of one or more High Courts

Citizen + distinguished jurist in President's opinion

Alternatives, not cumulative requirements | No imported judgeship, impeachment, age-65 retirement or judicial salary | Answer phrase: judicial calibre without judicial office

QUALIFICATION

## 4 APPOINTMENT, PLEASURE, REMUNERATION AND INDEPENDENCE

### INDEPENDENCE SUPPORTS

Strength: constitutional status and high professional qualification

Strength: all-court audience and parliamentary legal voice

Vulnerability: presidential pleasure and no fixed constitutional term

### INDEPENDENCE RISKS

Vulnerability: executive-client dependence and outside-work conflicts

No constitutional impeachment, confirmation or protected salary

Reform: transparent criteria and conflicts, not invented judicial tenure

INDEPENDENCE

## 5 ADVICE, ASSIGNED DUTIES AND LITIGATION

REFERRED LEGAL MATTER -> AGI advice -> Government decision

ASSIGNED BRIEF -> authorised advocacy -> Court decision

Article 143 and court work arise through governing assignments/rules

Opinion is advice, not judgment, legislation or executive command

No policy veto, universal case monopoly or general prosecution power

Value: preventive legality before policy hardens into litigation

ADVICE LIMIT

## 6 ALL-COURT AUDIENCE + ARTICLE 88 VOICE WITHOUT VOTE

Article 76(3): all-court audience while performing duties

Audience = right to be heard; court controls procedure and outcome

Article 88: either House of Parliament

Article 88: joint sitting + named committee

No vote and no parliamentary membership by office

Other authorised Union counsel may also conduct cases

VOICE NO VOTE

## 7 ARTICLE 105(4) PRIVILEGE: FUNCTIONAL, NOT BLANKET

Article 105(4) extends clauses (1)-(3) to constitutionally entitled participants

Article 88 supplies the underlying participation right

Protection is linked to legislative speech and proceedings

No blanket immunity for private, professional or criminal conduct

No conversion into MP membership or ministerial responsibility

Safe phrase: proceeding-linked privilege extension

PRIVILEGE LIMIT

## 8 PART-TIME STATUS + RULE 8 CONFLICT PERIMETER

Not a whole-time government servant

Rule 8 listed-client/court-brief perimeter

Criminal defence + company/corporation office require permission where applicable

Outside professional work is not constitutionally prohibited

No advice or brief against GoI; no prospective covered conflict

Specified Ministry/PSU advice follows Department of Legal Affairs routing

CONFLICT CONTROL

## 9 AGI / SG / ASG / LAW MINISTER / CJI / PRIVATE ADVOCATE

AGI: constitutional, Article 76, Union client

SG/ASG: executive law officers, assigned Union work

Advocate-General: constitutional, Article 165, State client

Law Minister: political executive; AGI is not Cabinet

CJI: adjudicator; AGI is counsel

Private advocate/public prosecutor: professional/statutory roles, no Article 76 status

OFFICE DISTINCTION

## 10 ADVOCATE-GENERAL: ARTICLES 165, 177 AND 194(4)

### ARTICLE 165 CORE

165(1): Governor appoints + Article 217(2) qualification

165(2): State advice + assigned/conferred legal functions

165(3): Governor's pleasure + Governor-determined remuneration

### LEGISLATURE + UNION DIFFERENCE

No express Article 76(3)-style all-India audience clause

Article 177: State House(s)/named committee; no vote

Article 194(4): proceeding-linked privilege extension

FEDERAL MIRROR

## 11 CONTEMPT, BRIJESHWAR SINGH CHAHAL AND REFORM

Contempt Act s.15: bounded motions/consent routes

Court retains suo motu and adjudicatory power

No universal consent rule and no general prosecution power

Brijeshwar Singh Chahal (2016): fair/objective State counsel selection

Case does not create AGI collegium or fixed tenure

Reform: criteria + conflicts + recusals + permission records + litigation quality

BOUNDED CASE USE

## 12 PRELIMS TRAPS + MAINS ANSWER SPINE

TRAPS: fixed term / Cabinet / vote / binding advice

TRAPS: audience monopoly / blanket privilege / prosecution power

MAINS: compare -> independence debate -> calibrated reform

TRAPS: SG constitutional / universal private-practice ban

MAINS: define -> Article 76 clauses -> rights -> limits

Verdict: broad access and influence, bounded coercive authority

ANSWER SPINE

### QUALIFIED CONCLUSION

The AGI is constitutional government counsel: expert and widely heard, but non-voting, non-adjudicatory, non-ministerial and tightly conflict-bound.